

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Filed: _____

KIRK MALCOLM,

Plaintiff,

INDEX NO.

-against-

Plaintiff designates Bronx
County as the place of trial.

POLICE OFFICER ADRIAN RAMON (Shield # 21661), P.O.
"JOHN" WHITE (actual first name and shield # unknown),
POLICE OFFICERS "JOHN/JANE DOES" (the names
being fictitious, and who are employees of the New York
City Police Department who are not yet identified), THE CITY OF
NEW YORK and NEW YORK CITY POLICE DEPARTMENT,

S U M M O N S

The basis of venue is
the County in which the
cause of action arose.

Defendants.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to
serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this
summons, exclusive of the day of service of this summons, or within 30 days after service of
this summons is complete if this summons is not personally delivered to you within the State
of New York.

In case of your failure to answer this summons, a judgment by default will be taken
against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
October 12, 2015

ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

ADRIAN RAMON (Shield # 21661)
46th Precinct
3016 Webster Avenue
Bronx, New York 10468

POLICE OFFICER "JOHN" WHITE
46th Precinct
3016 Webster Avenue
Bronx, New York 10468

POLICE OFFICERS "JOHN/JANE DOES"
46th Precinct
3016 Webster Avenue
Bronx, New York 10468

NEW YORK CITY POLICE DEPARTMENT
100 Church Street
4th Floor
New York, NY 10007

THE CITY OF NEW YORK,
100 Church Street
4th Floor
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

INDEX NO.

KIRK MALCOLM,

Plaintiff,

VERIFIED COMPLAINT

-against-

POLICE OFFICER ADRIAN RAMON (Shield # 21661), P.O.
"JOHN" WHITE (actual first name and shield # unknown),
POLICE OFFICERS "JOHN/JANE DOES" (the names
being fictitious, and who are employees of the New York
City Police Department who are not yet identified), THE CITY OF
NEW YORK and NEW YORK CITY POLICE DEPARTMENT,

Defendants.

Plaintiff, by his attorneys, ASHER & ASSOCIATES, P.C., as and for his Verified
Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, KIRK MALCOLM, at all times herein mentioned was and still is a resident of the County of the Bronx, City and State of New York.
2. Defendant CITY OF NEW YORK (hereinafter "CITY") is a municipal corporation, incorporated pursuant to the laws of the State of New York, which operates the New York City Police Department (hereinafter "NYPD"), and as such is the public employer of the Defendant officers herein.
3. Defendant POLICE OFFICER ADRIAN RAMON, shield #21661 (hereinafter "RAMON") was an NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY and within the scope of his employment.
4. On or about October 12, 2012, the defendant POLICE OFFICER RAMON was

assigned to the 46th Precinct of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

5. Defendant POLICE OFFICER "JOHN" WHITE, shield #unknown (hereinafter "WHITE") was an NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY and within the scope of his employment.

6. On or about October 12, 2012, the defendant POLICE OFFICER WHITE was assigned to the 46th Precinct of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

7. Defendant POLICE OFFICER "JOHN/JANE DOES" were NYPD police officers, and at all times relevant hereto, acted in that capacity as agent, servant and/or employee of Defendant CITY and within the scope of their employment..

8. On or about October 12, 2012, the defendant POLICE OFFICERS "JOHN/JANE DOES" were assigned to the 46th Precinct of the NYPD at the time of the occurrences alleged in this complaint. They are being sued in both their individual and official capacities.

9. At all relevant times hereto, Defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities. At all relevant times hereto, Defendant CITY was responsible for making and enforcing the policies of NYPD and was acting under the color of law, to wit, under the color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York.

10. At all times hereinafter mentioned, the defendant NYPD had the duty to provide,

supervise and control the city streets and protect the well-being and safety of the public.

11. At all relevant times, the defendant NEW YORK was responsible for the training of its police officers, and more particularly, the individually named defendants RAMON (Shield #09618) and WHITE (Shield #unknown).

12. On October 12, 2012, the plaintiff KIRK MALCOLM was struck by a motor vehicle while crossing the Grand Concourse at its intersection with East 183 Street, Bronx, New York

13. On October 12, 2012 at the aforementioned location, the plaintiff was subjected to both verbal and physical abuse by multiple members of the NYPD, including the individually named defendants herein RAMON and WHITE who responded to his call for help after being struck by the unknown motor vehicle.

14. On October 12, 2012, at the aforementioned location, the plaintiff was beat up by multiple members of the NYPD, including the individually named defendants herein RAMON and WHITE.

15. On October 12, 2012, the plaintiff, KIRK MALCOLM was pulled and choked prior to being handcuffed and forcibly detained by multiple members of the NYPD, including the individually named defendants herein RAMON and WHITE.

16. On October 12, 2012, multiple members of the NYPD, including the individually named defendants herein RAMON and WHITE refused to allow the plaintiff KIRK MALCOLM to be transported by ambulance to the hospital although he had been struck by a motor vehicle.

17. On October 12, 2012, the plaintiff KIRK MALCOLM was arrested and charged with Penal Law §§120.00(1), 155.25, 205.30, 195.05, 165.40, 120.15 and 240.26. All charges were dismissed on April 17, 2013.

18. Based upon information and belief, the officers, including the individually named defendants RAMON and WHITE, possessed no warrants, had no permission nor consent, nor any legal justification for their actions.

19. On October 12, 2012, plaintiff KIRK MALCOLM was caused to suffer severe personal injuries.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF KIRK MALCOLM
Pursuant to § 1983 (FALSE ARREST)

20. Paragraphs 1 through 19 of this complaint are hereby realleged and incorporated by reference herein.

21. That Defendants had neither valid evidence for the arrest of KIRK MALCOLM nor legal cause or excuse to seize and detain him.

22. That in detaining KIRK MALCOLM and without a fair and reliable determination of probable cause, Defendant CITY abused its power and authority as a policymaker of the New York City Police Department under the color of State and/or local law. It is alleged that CITY, via their agents, servants and employees routinely charged persons with crimes they did not commit. KIRK MALCOLM was but one of those persons.

23. Upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately supervise and train its officers, staff, agents and employees, thereby

failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

24. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated. In addition, the City of New York had and has a policy, custom, and/or practice of detaining persons for an excessive period of time prior to arraignment.

25. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of KIRK MALCOLM's rights alleged herein.

26. By reason of Defendants acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of KIRK MALCOLM's rights, subjected KIRK MALCOLM to an unlawful detention, in violation of the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.

27. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of KIRK MALCOLM's civil rights, including but not limited to the right to be free from being falsely arrested.

28. By reason of the foregoing, KIRK MALCOLM suffered physical injuries, mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF KIRK MALCOLM
Pursuant to §1983 (EXCESSIVE FORCE)

29. Paragraphs 1 through 28 are hereby realleged and incorporated by reference herein.

30. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.

31. That Defendants had no legal cause or reason to use excessive force in effectuating KIRK MALCOLM's arrest or after KIRK MALCOLM was arrested and in custody.

32. That Defendants violated KIRK MALCOLM's Fourth and Fourteenth Amendment right to be free from unreasonable seizures when they used excessive force against him.

33. That at the time of the arrest or while in custody, KIRK MALCOLM did not pose a threat to the safety of the arresting officers.

34. That KIRK MALCOLM was not actively resisting arrest or attempting to evade arrest.

35. That Defendant CITY, through its officers, agents, and employees, unlawfully subjected KIRK MALCOLM to excessive force while effectuating his arrest.

36. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

37. That by reason of Defendants acts and omissions, acting under color of state law and within the scope of his authority, in gross and wanton disregard of KIRK MALCOLM's rights, subjected KIRK MALCOLM to excessive force while effectuating his arrest, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

38. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of KIRK MALCOLM's civil rights, including but not limited to the right to be free from the application of excessive force.

39. That upon information and belief, in 2010, Defendants and CITY had a policy or routine practice of using excessive force when effectuating arrests.

40. That upon information and belief, it was the policy and/or custom of defendant CITY to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

41. That as a result of the above described policies and customs, the officers, staff, agents and employees of defendant CITY, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

42. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of arrestees and were the cause of the violations of KIRK MALCOLM's rights alleged herein.

43. By reason of the foregoing, KIRK MALCOLM suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

44. The aforementioned use of excessive force in effectuating the wrongful arrest and detention of the plaintiff by RAMON, WHITE and P.O.s JOHN/JANE DOES violated the plaintiff's constitutional rights.

45. This action arises under the United States Constitution, particularly under the provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly Title 42 of the United State Code, Section 1983.

46. Each and all of the acts of the defendants were done by the defendants, each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, County of the Bronx, and under the authority of their office as police officers for such city and county.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF KIRK MALCOLM
Pursuant to § 1983 (MALICIOUS PROSECUTION)

47. Paragraphs 1 through 46 are hereby realleged and incorporated by reference herein.

48. That Defendants, with malicious intent, arrested KIRK MALCOLM and initiated a criminal proceeding despite the knowledge that KIRK MALCOLM had committed no crime.

49. That all charges against KIRK MALCOLM were terminated in his favor.

50. That there was no probable cause for the arrest and criminal proceeding.

51. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of KIRK MALCOLM's rights, deprived KIRK MALCOLM of his liberty when they maliciously prosecuted him and subjected him to an unlawful, illegal and excessive detention, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

52. That upon information and belief, Defendants had a policy and /or custom of maliciously prosecuting individuals despite the lack of probable cause. Thus, as a result of the above described policies and customs, KIRK MALCOLM was maliciously prosecuted despite the fact that he had committed no violation of the law.

53. That upon information and belief it was the policy and /or custom of defendant CITY to inadequately hire, train, supervise, discipline and /or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents, and employees.

54. That as a result of the above described policies and customs, defendant CITY, its staff, agents and employees of defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

55. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of arrestees and were the cause of the violations of KIRK MALCOLM's rights alleged herein.

56. That in so acting, Defendant CITY abused its power and authority as policymaker of the NYPD under the color of State and/or local law.

57. That upon information and belief, in 2012, Defendant CITY had a policy or routine practice of alleging facts against persons for the purpose of charging crimes they did not commit.

58. That by reason of the foregoing, KIRK MALCOLM suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorneys' fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF KIRK MALCOLM

Pursuant to § 1983 (DENIAL OF MEDICAL TREATMENT)

59. Paragraphs 1 through 58 are hereby realleged and incorporated by reference herein.

60. That the injuries Plaintiff suffered as a result of Defendants' assault amounted to a serious medical condition.

61. That untreated, Plaintiff's injuries amounted to a substantial risk of serious harm.

62. That Plaintiff requested medical treatment for his injuries.

63. That Defendants refused to provide medical treatment.

64. That the denial of medical care resulted in a substantial risk of serious harm to Plaintiff.

65. That Defendants acted with reckless disregard for the substantial risk.

66. That Defendants denied Plaintiff access to medical care because of a deliberate indifference to the medical need.

67. That by reason of the foregoing, MALCOLM suffered physical and psychological injuries, traumatic stress, mental anguish, economic damages including attorneys fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

WHEREFORE, MALCOLM respectfully requests that judgment be entered:

1. Awarding MALCOLM compensatory damages in a full and fair sum to be determined by a jury;
2. Awarding MALCOLM punitive damages in an amount to be determined by a jury;
3. Awarding MALCOLM interest from October 12, 2012 and
4. Awarding MALCOLM reasonable attorney's fees pursuant to 42 USC §1988; and
5. Granting such other and further relief as to this Court seems proper.

Dated: New York, New York
October 12, 2015


By: **Roberta D. Asher**
ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

INDEX NO.

KIRK MALCOLM,

Plaintiff,

**ATTORNEY'S
VERIFICATION**

-against-

POLICE OFFICER ADRIAN RAMON (Shield # 21661), P.O.
"JOHN" WHITE (actual first name and shield # unknown),
POLICE OFFICERS "JOHN/JANE DOES" (the names
being fictitious, and who are employees of the New York
City Police Department who are not yet identified), THE CITY OF
NEW YORK and NEW YORK CITY POLICE DEPARTMENT,

Defendants.

Roberta D. Asher, an attorney duly admitted to practice law in the State of New York,
makes the following affirmation under the penalty of perjury:

I am of the firm of ASHER & ASSOCIATES, P.C., the attorneys of record for the
plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to
my own knowledge except as to the matters therein stated to be alleged on information and
belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because he is not in the
County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's
knowledge are correspondence had with the said plaintiff, information contained in the said
plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York
October 12, 2015


ROBERTA D. ASHER

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

KIRK MALCOLM,

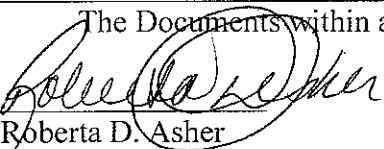
Plaintiff,

-against-

POLICE OFFICER ADRIAN RAMON (Shield # 21661), P.O. "JOHN" WHITE (actual first name and shield # unknown), POLICE OFFICERS "JOHN/JANE DOES" (the names being fictitious, and who are employees of the New York City Police Department who are not yet identified), THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT,

Defendants.

SUMMONS and VERIFIED COMPLAINT

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:
By: 
Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff

111 John Street

Fourteenth Floor

New York, New York 10038

(212) 227-5000

PLEASE TAKE NOTICE
NOTICE OF
ENTRY

that the within is a (certified) true copy of a duly entered in the office of the Clerk
of the within named Court on , 2015 .

NOTICE OF
SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one of
the of the within named Court, at , New York, on , 2015 , at
9:30 A.M.

Dated: